

18.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF SYDNEY GUBIN'S FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Sydney Gubin to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

19.

CASE #	CASE NAME	HEARING NAME
CVPS2509048	CAMPOS VS PSTPS, INC. DBA DESERT HOT SPRINGS SPA HOTEL, A CALIFORNIA CORPORATION	HEARING RE: MOTION TO COMPEL

Tentative Ruling:

Interrogatories:

Upon a timely motion to compel further, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (See *Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits." (Code Civ. Proc., § 2030.220(a).) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (*Id.* at § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information...." (*Id.* at § 2030.220(c).)

Special interrogatory no. 10 asks for Defendant to identify all lawsuits, PAGA claims, Labor Commissioner complaints, or other legal actions filed against Defendant for wage and hour violations. Defendant responded by identifying two lawsuits within the statute of limitations. In response, Defendant contends it does not maintain records of litigation as they are within the lawyers' possession. That is not sufficient. As stated above, Defendant must obtain a reasonable and good faith effort to obtain the information. It can contact its attorneys for the information. Nor is there any privilege issue—Plaintiff is just seeking the identification of cases. As for limiting to the statute of limitations, that